

Stephanie Richards
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200 Dukes Ride,
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1st October 2025

Dear Stephanie

RE: 30 ALLANDALE AVENUE

The submitted Noise Impact Assessment (NIA) by 'Impact Acoustics' concludes that the proposed commercial use will not result in significant noise impacts, demonstrating compliance with the NPPF. However, the LPA's Environmental Health Officer has raised substantial concerns about the adequacy of this assessment. Specifically, the report fails to fully account for the physical reality of noise from poolside activities, such as shouting and screaming, particularly from user groups, which may cause far greater disturbance than simple averaged noise levels.

Impact Acoustics Ltd have now issued a revised report that includes both an L_{Amax} dB assessment as well as a car movement assessment to strengthen the conclusion of our noise impact assessment which is that the existing pool lessons have returned an assessment conclusion of Low Impact and that planning permission should now be granted.

It was noted that the NIA report relied on a 3-hour assessment conducted on a day when the pool facility was not in use, according to the submitted hours of use in the application documents ("there are no lessons on Thursdays or Saturdays"), and there is a lack of clarity about whether the pool was at full capacity during the assessment, as well as whether doors and windows were open or closed. The report also fails to address the noise impacts from the arrivals and departures of users, most of whom are likely to travel by car, further contributing to potential noise disturbance. The absence of this data significantly undermines the validity of the conclusions drawn in the NIA. Please see above comment and revised noise report relating to their concerns regarding car movements and L_{Amax} dB noise levels. The possibility of 'potential noise disturbance', as stated above, has been assessed and addressed within our revised noise report. The assessments were carried out over a five day period with one noise meter on the boundary to capture the prevailing background noise levels and a second located inside the swimming pool area to capture a 3 hour period during lessons at its maximum capacity of two teachers and four students. The three hour period is then used as the worst case scenario as the source levels of noise used within all the calculations and assessments. For reference, the three hour period when the class was operational was removed from the background noise data captured externally at the boundary to assess a true background noise level assessment.

The Environmental Health Officer also points out that the LA_{eq} levels recorded during the assessment period showed a substantial increase, more than doubling over the course of the 3-hour window. Importantly, L_{Amax} data, which would capture peak noise events such as shouting or slamming of doors, was not provided for the poolside assessment itself, a crucial oversight given the nature of poolside activities. The EH Officer hasn't understood the process of capturing the source noise levels from the swimming lessons. This has been explained in greater detail within the attached noise report.

Furthermore, the noise break-out from the facility, particularly from windows and doors, is of paramount concern. Despite the NIA's conclusions, the reality is that the noise from pool activities is unlikely to be inaudible, and this is the primary source of complaints from local residents. Environmental Health have indicated that it would be impractical to impose enforceable noise conditions on the operation of the facility, further suggesting that the noise from the proposed use would likely cause harm to residential amenity. The EH Officer is ignoring the conclusions and facts of the noise report with the phrase 'Despite the NIA's conclusion', suggesting they're ignoring or even disagreeing with the conclusion of our assessment, yet they fail to offer any actual data that rebuts our conclusion. The audibility of a sound does not always result in adverse impact to local residents and must be considered in the context of the site. Under the Environmental Protection Act 1990, for a noise to be considered adverse impact it must amount to an "unreasonable interference with the use or enjoyment of land," which is assessed on factors such as volume, character, duration, frequency, and the local context. Guidance from bodies such as the Chartered Institute of Environmental Health (CIEH) and the World Health Organization (WHO) Environmental Noise Guidelines emphasises that it is not sufficient that a sound can simply be heard; it must reach a level that is deemed materially detrimental to health or quality of life. Local authorities therefore apply professional judgement, often informed by standards such as BS 4142:2014+A1:2019 (Methods for rating and assessing industrial and commercial sound), which specifically distinguishes between mere audibility and significant adverse impact. Our assessment has indicated 'Low Impact' and not an adverse impact.

The operational hours proposed by the applicant are also of significant concern. The application requests hours of use that extend beyond typical daytime hours, including evenings and weekends, which would result in noise disturbance during times when residents are most likely to be in their homes and gardens. This is particularly problematic in a densely populated residential area like Allandale Avenue. They are suggesting the activity of the swimming lessons 'would result in noise disturbance during times when residents are most likely to be in their homes and gardens'. This simply isn't true and we have calculated and assessed the actual noise levels from a worst case scenario set of lessons and concluded a 'Low Impact'. The council have failed to offer any technical data or calculations to suggest otherwise. Therefore, until they do, our assessment and conclusions remain accurate and a true representation of the proposed application.

The proposed hours of operation, including evening use until 8:00 PM on weekdays and nearly full-day use on Sundays, are considered unacceptable given the close proximity of neighbouring residential properties. The Environmental Health Officer argues that such extended hours would prevent residents from enjoying peace and quiet in their homes and gardens, especially during evenings and weekends when external noise levels are more noticeable. It is also noted that the lack of a more traditional weekday 9:00 AM - 5:00 PM operational schedule suggests that the facility is not designed to align with the needs of the surrounding residential community. Once again, we have calculated and demonstrated a 'Low Impact' up to 8pm. I refer you to my aforementioned statement relating to audibility which is paramount and key in this situation.

In addition to noise from poolside activities, the air-conditioning unit for the facility is another source of potential noise disturbance. In the event of an approval a condition to restrict the noise levels from the air-conditioning plant to ensure that the noise emitted does not adversely affect neighbouring properties would be imposed. We would accept a planning condition on this basis provided it was in-line with their local plan. Once again, our assessment of the external plant concluded 'Low Impact' and that complaints are unlikely in accordance with BS 4142: 2014 +A1: 2019. Again, the council have not provided any data to rebut our assessment, and we therefore assume their acceptance of our assessment.

The applicant's previous use of the facility has been cited by objectors as having exceeded the current proposed usage, with reports of pool parties and other loud activities taking place. Despite the conclusions of the NIA, the evidence provided by the local residents suggests that the actual impact of the facility's use has been far more disruptive than anticipated, further strengthening concerns that the current proposal will have a similar or greater impact on the amenity of surrounding properties. **Again, the EH Officer seems to ignoring the physical technical data contained within our report and basing their professional opinion on local residents comments without verifying these through either site visits themselves or undertaking their own noise impact assessments to rebut ours. This therefore makes it very difficult for me to comment back to their comments based on the lack of technical or physical evidence to suggest our assessment is anything but accurate.**

In conclusion, the proposal fails to adequately address the concerns raised regarding noise impact, particularly from poolside activities, arrivals and departures of users, and plant equipment. The proposed operational hours are not suitable for a densely populated residential area and would significantly harm the amenity of neighbouring residents, particularly during evenings and weekends. Given the lack of sufficient mitigation measures and the practicality of enforcing noise limits, it is considered that the proposed development would result in unacceptable levels of noise disturbance, which would significantly detract from the quality of life of nearby residents. **In conclusion, I have updated our technical noise report to assess traffic movement as well as L_{Amax} dB levels as requested by the EH Officer. As suggested above, they're basing their opinion and even decision based on comments received from local residents and not the physical and accurate data contained within our technical noise impact assessment. I would have a little more understanding of their approach if they had their own data, assessments, physical evidence, but they don't. They respond by saying 'Despite the NIA's conclusion the reality is that the noise from pool activities is unlikely to be inaudible'. Firstly, they have no facts to substantiate that statement and secondly we have already discussed the direct correlation between audibility and adverse impact. The EH Officer has continually used phrases suggesting a noise nuisance would be present and has based their professional opinion solely on neighbouring comments, ignoring our assessment and conclusions entirely as well as the lack of their own evidence or data to demonstrate otherwise.**

Our assessment remains true and accurate and it's the professional opinion of Impact Acoustics Ltd that, on the basis of noise, NPPF should be followed and planning permission granted.



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